

A RESOLUTION ESTABLISHING A PROGRAM FOR THE DONATION OF PERSONAL PROPERTY WHICH IS NOT NEEDED FOR PUBLIC USE, IS OBSOLETE, OR UNFIT FOR THE USE FOR WHICH IT WAS ACQUIRED.

WHEREAS, in accordance with Ohio Revised Code (“R.C.”) 3313.41, and Board Policy 7300 – *Disposition of Real Property/Personal Property*, if the Board has property that it, by resolution, finds is not needed for school district use, is obsolete, or is unfit for the use for which it was acquired, the Board may donate such property if its fair market value is, in the opinion of the Board, less than \$2,500; and

WHEREAS, such property may be donated to a nonprofit organization that is located in the State of Ohio and is exempt from federal income taxation pursuant to 26 U.S.C. 501(a) and (c)(3) (“Eligible Organizations”); and

WHEREAS, prior to donating any such property, the Board shall adopt a resolution expressing its intent to make property which is unneeded, obsolete, or unfit for school district use available to Eligible Organizations; and

WHEREAS, such a resolution shall include guidelines and procedures the Board deems necessary to implement the donation program and shall indicate whether the Board will conduct said donation program or if the Board will contact with a representative to conduct it, and if the representative is known at the time of the passage of the resolution establishing the donation program, the resolution shall include the representative’s contact information; and

WHEREAS, within its guidelines and procedures, the resolution shall include a requirement that any Eligible Organization desiring to obtain donated property under this division shall submit a written notice to the Board; and

WHEREAS, after review of its personal property, the Board has determined that it is in the possession of a trailer that is no longer needed for district use, is obsolete, or is otherwise unfit for the use for which it was originally acquired, and that such property, in the opinion of the Board, does not exceed \$2,500; and

WHEREAS, the Board has expressed a desire to establish a program for the donation of such property to Eligible Organizations.

NOW, THEREFORE, BE IT RESOLVED that the Board of Education of the Brecksville-Broadview Heights City School District hereby establishes the Brecksville-Broadview Heights Donation Program (the “Program”) for purposes of donating personal property owned by the Board which is no longer needed for public use, is obsolete, and whose fair market value, in the opinion of the Board, is less than \$2,500, to Eligible Organizations.

BE IT FURTHER RESOLVED that any Eligible Organization desiring to obtain Board property to be donated through the Program, shall submit a written notice to the Board’s Treasurer, who will conduct such program, that shall include each of the following: a) evidence that the organization is a nonprofit organization that is located in the State of Ohio; b) a description of the organization’s primary purpose; c) a description of the type or types of property the organization needs; and d) the name, address, and telephone number of the individual designated by the organization to receive donated property as its agent.

BE IT FURTHER RESOLVED that the Treasurer shall maintain a list of all nonprofit organizations that notify the Board of their desire to obtain Board property pursuant to the Program and that the Treasurer determines to be an Eligible Organization in accordance with the requirements set forth herein, as well as a list of all real or personal property that qualifies for the Program.

BE IT FURTHER RESOLVED that priority may be given to certain Eligible Organization(s) based on a direct relationship between the purposes of the organization and specific purposes of the programs provided or administered by the Board, and priority shall be given to District support organizations that enhance the educational experiences of District students, help meet educational needs of students, and/or provide extra educational benefits.

BE IT FURTHER RESOLVED that in establishing the Program, the Board hereby adopts the following additional guidelines and procedures:

1. All property donated through the Program shall be made available “as is”, and in no circumstances shall such property be returned to the Board.
2. Any Eligible Organization receiving donated property under the Program shall arrange for its authorized representative to pick up the donated property directly from the designated location in which the property is stored or shall pre-pay any and all expenses for shipping and delivery of the donated property.
3. No employees of the Board shall be permitted to deliver property donated under the program to any Eligible Organization receiving such donated property.
4. Any Eligible Organization that loses its eligibility in accordance with the requirements set forth herein, shall immediately notify the Treasurer in writing of the Eligible Organization’s loss of eligibility to receive donated property in accordance with the Program.
5. At their discretion, the Treasurer may periodically, but not more frequently than on an annual basis, require an Eligible Organization to provide an updated written notice in accordance with the requirements of this resolution. An organization’s failure to provide an updated written notice shall be removed from the Program’s list of organizations eligible to receive property under the Program.

BE IT FURTHER RESOLVED that the Treasurer is hereby directed to cause publication, in a newspaper of general circulation, a notice of the Board’s intent to establish the Program to donate property which it has determined to be unneeded, obsolete, or unfit for school district use, whose fair market value, in the opinion of the Board, is less than \$2,500. The notice shall be published on two separate occasions and must include a summary of the information provided in this Resolution. The second and subsequent notice referenced herein shall be posted not less than ten (10) and not more than twenty (20) days after the previous notice. A similar notice must also be continually posted in the Board of Education’s office and on the District’s website.

BE IT FURTHER RESOLVED that it is hereby found and determined that all formal actions of the Board concerning and relating to the adoption of this Resolution were adopted in an open meeting of the Board, and that all deliberations of the Board and any of its committees that resulted in such formal action were open to the public when required by law, in full compliance with the law.